

PARK CENTRAL HOTEL

NEW YORK

PARK CENTRAL HOTEL NEW YORK
870 SEVENTH AVENUE AT 56TH STREET
NEW YORK, NY 10019

Telephone: (212) 247-8000
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GROUP SALES AGREEMENT

Date Prepared: October 28, 2025
Group Contact: Kirk Troen
Title: Owner
Organization: Troen Student Performance Events
Address: 1060 Carolina Cir SW
Vero Beach, FL 32962
Telephone: (321) 265-7718 Fax: E-mail: kirk@troenspe.com

Agent for Group: Book My Group*
Address: 710 Route 46 East
Fairfield, NJ 07004
Telephone: 973-808-7722 ext 6122 Fax: 973-882-6546 E-mail: elurz@bookmygroup.com

Group/Function Name: BMG - Troen Tours & Events - Carnegie Group
Official Event Dates: March 29, 2027 - April 1, 2027
Sales Manager: Alicia Nunez-Davila
Title: Complex Director of Hotel Sales
Telephone: 212-707-5060 Fax: (212) 707-4900 E-mail: anunez@parkcentralny.com

Troen Student Performance Events (Group) and the Park Central New York (Hotel) agree to the terms and conditions as outlined:

DECISION DATE

The Hotel agrees to hold the space listed in this agreement on a tentative basis until **November 4, 2025**. If this agreement is not fully executed by Group and Hotel by **November 4, 2025**, the Hotel will release the space.

GUEST ROOM BLOCK & RATES

		Mon 03/29/2027		Tue 03/30/2027		Wed 03/31/2027	
	Occupancy	Rooms	Rate	Rooms	Rate	Rooms	Rate
Classic Two Double	Q	50	\$269.00	50	\$269.00	50	\$269.00

Total Room Nights: 150

Room rates are subject to applicable state and local taxes: (i) New York State hotel tax of 14.75%; (ii) the New York City occupancy tax, which is \$2.00 per room nightly; and (iii) the New York City Convention Center tax of \$1.50 per room nightly. All taxes are subject to change.

If Group maintains tax exempt status, please provide the Hotel with a State of New York tax exemption certificate along with the signed contract so that the Hotel may assure that the billing arrangements are in order.

Tax exempt attendees are responsible for presenting appropriate tax exemption certification in order to assure proper handling of their individual accounts.

If the arrival/departure pattern should change from what is stated in this agreement, the hotel reserves the right to adjust the rates accordingly.

SMOKING POLICY

Park Central Hotel is committed to providing its guests and associates with a smoke free environment. Smoking tobacco, pipes, vapes, e-cigarettes and marijuana is strictly prohibited within the hotel. Guests who smoke in the hotel will be assessed a smoking fee of \$500.00 plus tax per occurrence. By signing this group sales agreement, you acknowledge that the hotel has installed smoking detection sensors provided by NoiseAware in its rooms. NoiseAware is a smart device that allows hotel management to respond to smoking events without disrupting your stay. You hereby agree and consent to the use of such sensor in your group's rooms and acknowledge and agree that it is 100% privacy compliant and required by the hotel. By acknowledging the foregoing, you agree to waive any future claims related to the presence of the sensor in a room you may book on behalf of your group. Tampering with the sensor is strictly prohibited.

BREAKFAST

Breakfast vouchers can be added for \$13.00 (inclusive of tax) and can be redeemed at our Central Market. Vouchers include one (1) coffee, tea or juice beverage, one (1) breakfast pastry and one (1) piece of fresh fruit.

DESTINATION FEE **WAIVED FOR THIS GROUP**

A mandatory Destination Fee priced at \$40.00, plus tax, per room, per night which provides guests with the following services, amenities and added value offerings: Wireless (WIFI) High Speed Access through the Hotel's guest rooms and public spaces for up to 5 devices; Unlimited Local and Domestic Long Distance calls; Unlimited use of the 24-hour state-of-the-art Fitness Center.

COMMISSION

The paid Group guestroom rates quoted by the Hotel shall be commissionable to Book My Group IATA #31650441, as agent of record for Group. Commissions shall be paid at the rate of ten percent (10%) of the actual Group room rate for all rooms actually used and paid for by the Group over the program dates. Commissions will not be paid on complimentary rooms, cancellation fees, attrition fees or rebates, if any. Should the agent of record change, the Hotel will not pay any additional commission.

CONTRACTED GROUP RATES

Group rates are available for the Group block only, subject to the terms of this Agreement. In the event additional rooms are required after the signed agreement is received, the Hotel reserves the right to renegotiate guestroom rates for any additional rooms required.

CUT-OFF DATE

The "cut-off" date is **February 26, 2027**. After the cut-off date all room nights which have not been reserved will be returned to the Hotel's general inventory unless written confirmation is received from the Group guaranteeing the rooms; however, Group's attrition obligation shall not be modified. Reservation requests received after the cut-off date will be based on availability at the Hotel's prevailing rates, but no less than the agreed contracted rate. Rooms will be credited to the Group's Guest Room Block.

CONCESSIONS

The Park Central New York is pleased to extend the Group the following concessions based on the contracted rooms nights as outlined and agreed to above. All concessions have been negotiated on the understanding that the number of rooms per night from the original Guest Room Block above shall be occupied and paid. If Group fails to occupy the Room Block, less any allowed attrition percentage, Group shall pay Hotel the standard cost associated with each concession, which shall be applied to Group's Master Account.

- Waived Destination Fees
- Complimentary WiFi Access
- One Complimentary Room Per 40 Paid and Actualized Rooms Nights
- Complimentary Access to 24-Hour Fitness Center

PORTERAGE

A portorage charge is mandatory for any Group of ten (10) or more rooms arriving on a common date and time. This includes both Groups arriving by means of common transportation (i.e. bus) and Groups arriving in a series of vehicles (i.e. taxi, limo, etc.). Porterage charges are currently \$11.52 per bag round trip and applies to each room at a minimum of one (1) bag per room for all Groups. If a Group leader requests luggage assistance for a Group to store luggage either prior to the Hotel's designated check-in time of 4pm or after checkout for a later departure, a "double handling" charge of \$3.84 per bag will be added to the master account. Porterage charges can only be billed to a master account, or to the master account of a 'sub-group' or 'affiliated group' that is arriving and cannot be charged to individual guests. Porterage rates increase each year by 4% effective July 1st and are subject to change per the collective bargaining agreement.

RESERVATION METHOD

The Hotel understands that the Group will submit a rooming list for all guestroom reservations. The Hotel will receive a complete rooming list no later than **February 26, 2027**.

All requests must be made by **February 26, 2027**, in order to qualify for the group rate. After the reservations due date, all room nights which have not been reserved will be deemed to be room nights which Group will not use and will be returned to the Hotels' general inventory. Reservation requests received after the cut-off date will be based on availability at the Hotel's prevailing rates and will be credited to the Group's Guest Room Block.

Name changes on the rooming list will be permitted up to five (5) business days prior to arrival.

GUESTROOM PERFORMANCE AND ATTRITION POLICY - EFFECTIVE CANCELLATION DATE

Group has reserved a total of 150 room nights and (50) rooms on the peak night under this contract as stated in the Group Room Block above. There is no penalty to Group provided at least 80% of the reserved rooms are utilized by the Group each night. If, however, fewer than 80% of the reserved rooms are used by the Group on any night, you will be charged \$269 plus any applicable taxes for each room not used by Group on such night under this Contract up to a maximum of 80% of the rooms reserved by the Group for such night; provided, however, if Hotel is able to utilize any such rooms for other guests on such night, after all other rooms at the Hotel are utilized by other guests, Group will not be charged for such rooms.

INDIVIDUAL ROOM CANCELLATIONS AND NO-SHOW POLICY

Subject to Group's attrition and cancellation obligations, cancellation of any individual reservation must be received three (3) business days, or seventy-two (72) hours prior to arrival or one night room and tax charges will apply. No-shows will also be charged one night's room and tax. Departure prior to the scheduled departure date will be subject to an early departure fee of \$75.00.

CHECK-IN / CHECK-OUT

Check-in time is 4:00 pm. Check-out time is by 12:00 noon.

CHILD POLICY

Children under 12 years of age sharing a room with their parents are free of charge (maximum of 2 children per room).

BILLING ARRANGEMENTS

The Hotel understands that the **room, tax and portorage (and storage if applicable)** will be applied to the Group's Master Account, and that each individual is responsible for his or her incidental charges.

DEPOSIT POLICY

For confirmation of the accommodation as indicated in this Agreement, the Hotel will require deposits and balance/full prepayment of all room and tax charges as outlined in the following schedule:

Due to Hotel on or before **January 26, 2027**
Due to Hotel on or before **February 26, 2027**

25% of Estimated Total Charges
Estimated Balance Due

Clients have multiple options for submitting deposits and payments. Accepted payment methods include credit card, ACH, e-check, and wire transfer. Please note that payments made by credit card will incur a convenience fee, which will be automatically applied at the time of transaction. Alternatively, clients may choose to pay via ACH, e-check, or wire transfer, which do not carry a convenience fee.

All deposits are non-refundable. However, any and all deposits may be applied to fees or charges due to cancellation or attrition as outlined in the Cancellation and Attrition Policies.

Please allow sufficient time for your payment to arrive to the hotel before the due date.

Failure to remit payment when due will result in cancellation of all arrangements outlined in this Agreement and the Group shall be liable for amounts described in the cancellation option provision of this Agreement.

CANCELLATION POLICY

The Group may cancel this contract upon written notice to the other party at any time prior to the event based on the following, plus applicable taxes:

On or after **January 26, 2027** 100% of guest room charges

COLLECTIVE BARGAINING

The Hotel is a signatory to a collective bargaining agreement with a union representing employees performing work on its premises. In accordance with this Agreement, all work performed on Employer's premises and all products produced on the Employer's premises by employees covered by this agreement shall not be performed or produced by persons not covered by this agreement. If you elect to outsource or provide anything associated with the Group to a 3rd party vendor who utilizes non-union employees, then you will be responsible for any shadow labor, fees or penalties assessed to the Hotel, which will be due immediately upon demand. This includes but not limited to; Food & Beverage, Security, and Audio Visual brought into the Hotel from companies who utilize labor that is not part of The Hotel Trade Council Local Union 6.

PACKAGE SHIPPING AND RECEIVING

The Group is responsible for all arrangements and all expenses associated with the shipping of materials, merchandise, exhibits or any other items to and from the Hotel. The Hotel must be notified in advance and any consignments shipped to the Hotel should be addressed: Attention – Conference Service Manager, Park Central New York Hotel, 870 Seventh Avenue, New York, New York 10019 including the event planner's name, organization and date of the program. The Hotel will accept packages three (3) business days prior to your scheduled event with return shipment within one (1) business day. Packages received or stored beyond this time frame are subject to additional daily charges of \$25.00 per package and \$150.00 per pallet. The delivery or shipping to or from guest rooms is subject to a handling fee (see below). Hotel is not responsible for damage or loss of items delivered to the Hotel prior to any function, or of any items or packages left on property after the group departs. Upon request, items left on premises after departure will be returned to the customer at the customer's expense.

Fees are as follows:

\$10.00 per box under 25lbs * \$25.00 per box for 25 to 50lbs * \$35.00 per box over 50lbs * Pallets are assessed at a rate of \$150 per pallet.

FORCE MAJEURE

Either party may cancel the Event without liability to the other party upon the occurrence of any event or circumstance beyond the reasonable control of such party, which event or occurrence occurs after the execution of this Agreement but before the Event Date, including acts of God, declared war in the United States, acts of terrorism in the city where the Hotel premises is located, government regulations, disaster, strikes or civil disorder, but solely to the extent that such event or circumstances makes it illegal or impossible for Hotel to provide, or for the Group to use, the premises of the Hotel. Notwithstanding anything to the contrary, and for the avoidance of doubt, the foregoing *force majeure* provision shall not excuse any of the Parties from their respective obligations for the payment of any amounts due hereunder. The Event cannot be cancelled under this **Section** because of general economic conditions, including (without limitation) any recession, depression or governmental budget cut. Either party that wishes to cancel the Event pursuant to this **Section** must provide prompt written notice to the other party identifying the event or circumstance, and in any event within five (5) days after the occurrence of such event or circumstance. If the Event is duly cancelled under this **Section**, then Hotel shall, within thirty (30) days after such cancellation, refund any Deposits made by Group.

COMPLIANCE WITH LAWS

This agreement is subject to all applicable federal, state, and local laws, including, but not limited to: all permanent and temporary health and safety mandates, codes, and regulations including, but not limited to, those relating to Covid-19 or other communicable disease; alcoholic beverage control laws; disability laws; and federal anti-terrorism laws and regulations. Hotel and Group agree to cooperate with each other ensure compliance with such laws.

INSURANCE

The Hotel and the Group shall obtain and maintain and provide evidence of insurance upon request in amounts sufficient to provide coverage for any liabilities which may reasonably arise out of or result from the respective obligations pursuant to this contract.

INDEMNIFICATION

Each party shall indemnify, defend and hold harmless the other party, its directors, officers, employees, agents, members, parent company, partners, general partners, successors, assigns, predecessors, affiliates and related companies from and against any and all actions, causes of action, claims, demands, liabilities, losses, judgments, damages or expenses and charges of any kind or nature including interest, reasonable attorneys' fees and other costs, expenses and charges which the other may at any time incur, sustain or become subject to by reason of any claim or claims:

- a. arising out of the indemnifying party's breach of any provision, warranty or representation of this Agreement;
- b. arising out of the indemnifying party's willful acts or omissions, negligence, or other similar wrongdoing; or
- c. arising from the indemnifying party's failure to comply with any law or regulation, unless caused by the other.

The terms of this Section shall survive the expiration or termination of this Agreement. For the purpose of this Indemnity, the parties agree that the Hotel Parties indemnified include the following: The Hotel; Highgate Hotel Group, the Hotel's management company and the Hotel's owner. Group agrees that any breach or acts and omissions of its contractors, subcontractors, employees, agents and vendors on Hotel premises constitute Group's breach, acts or omissions for the purpose of this indemnity.

MISCELLANEOUS PROVISIONS

This Agreement is made and will be performed in New York, and shall be governed by and construed in accordance with New York law, excluding its conflict of law rules. By executing this Agreement, the Group consents to the exercise of personal jurisdiction over it by, and exclusive venue in, the courts of the State of New York. Any legal action in connection with this Agreement shall be brought and maintained only in the courts of the State of New York. In the event of litigation arising from or associated with this Agreement, both parties agree that the prevailing party shall recover its attorney's fees and any costs incurred.

This Agreement supersedes all prior proposals both oral and written, negotiations, representations, commitments and other communications between the Group and the Hotel, and may only be supplemented or changed in writing, signed by both parties' representatives. None of the parties' representatives have been or are authorized to make any representation that varies from the express terms of this Agreement, though this Agreement may be amended or supplemented in writing.

The Group may not assign this Agreement or any rights under this Agreement without the Hotel's prior written consent. The Group further agrees that any change in the Group's corporate or business ownership structure, whether by merger, take-over or otherwise, shall not serve to cancel, modify or in any way reduce the Group's obligations under this Agreement, and this Agreement shall remain in full force and effect with respect to the Group and any successor entity.

AMERICANS WITH DISABILITIES ACT

Both the Group and the Hotel shall be responsible for compliance with the public accommodation requirements of the Americans with Disabilities Act as defined by law. The Hotel shall provide, to the extent required by the Act, such auxiliary aids and/or services as may be reasonably requested by Group, provided that Group gives reasonable advance written notice to the Hotel of such needs. Group shall be responsible for the cost of any auxiliary aids and services (including engagement of and payment to the specialized service providers, such as sign language interpreters), other than those types and quantities typically maintained by the Hotel.

CHANGES/NOTICE

Any changes to these terms must be made in writing and signed by both parties to be effective. Any modifications, additions or corrective lining out made on this Agreement will not be binding unless such modifications have been signed or initialed by both parties. Any notice hereunder shall be given to the individuals listed on the first page of this Agreement at the addresses set forth herein. Notice must be given through certified or registered mail, return receipt requested, overnight delivery, with a signature signifying receipt, or by facsimile in order to be effective under this agreement and shall be deemed delivered upon receipt.

BINDING AGREEMENT

Written acceptance constitutes a binding contract between the Park Central New York and Group. This document must therefore be signed by a representative authorized to commit such arrangements on behalf of Group. Any changes to these terms must be made in writing and signed by the parties. This Agreement constitutes the entire understanding between the parties and supersedes any previous communications, representations or agreements, whether written or oral.

ENFORCEABILITY

If any provision of the Agreement is unenforceable under applicable law, the remaining provisions shall continue in full force and effect.

OPTION DATE

To confirm arrangements for this program, please sign and return one copy of this Agreement to the Hotel prior to **November 4, 2025**. After this date, if the Hotel does not receive the executed Agreement, the Hotel reserves the right not to hold the space and otherwise to avoid any obligations under this Agreement.

Sincerely,

On behalf of
Park Central New York:

Name: Alicia Nunez-Davila
Title: Complex Director of Hotel Sales

Date: _____

On behalf of
Troen Student Performance Events:

Kirk Troen

Name: Kirk Troen
Title: Owner

Date: November 3, 2025
